

**LIMITED SOURCE JUSTIFICATION FOR AN ORDER EXCEEDING
THE SIMPLIFIED ACQUISITION THRESHOLD
(AUTHORITY: FAR 8.405-6)**

Task Order No.: 1305L220FNFFK0331

This acquisition is conducted under the authority of the Multiple Award Schedule (MAS) Program.

- 1. Agency and contracting activity.** Department of Commerce (DOC), National Oceanic and Atmospheric Administration (NOAA), Acquisition and Grants Office (AGO), Western Acquisition Division (WAD) and the National Marine Fisheries Services (NMFS), Office of the Chief Information Officer (OCIO).

- 2. Nature and/or description of the action being approved.**

This is a limited source justification for a modification to extend the period of performance of existing Task Order: 1305L220FNFFK0331, awarded to Mobomo, LLC on September 16, 2020 under General Services Administration (GSA) GSA MAS Contract: GS-35F-143BA.

- 3. Description of the supplies or services required to meet the agency's needs (including the estimated value).**

This action will provide for continuation of web modernization and maintenance support services. These services enable NMFS OCIO to maintain and enhance NMFS' flagship website, fisheries.noaa.gov, in keeping with NMFS OCIO's commitment to providing accessible, user-centric, and up-to-date information and services to the public.

The scope of services includes project management, development and maintenance, requirements validation, testing, documentation review and reporting, performance auditing and monitoring, user experience, usability, design and content support, and hosting and security.



The order will initially be extended six (6) months but may be extended up to an additional six (6) months for a total of twelve (12) months. The current order expires on March 14, 2025 and a short-term extension is needed to sustain operations until an ongoing protest is resolved and the contract awardee can complete transition activities to commence full performance. The reprourement has been delayed due to a protest of the initial award decision, completion of corrective action, and a subsequent protest of the corrective action award decision.

It is projected that full performance under the new contract award will commence in September 2025. The initial six-month extension timeline is based on 40 days to submit a report addressing the protest arguments and filing of comments responding to the agency report, 100 days for U.S. GAO decision, and up to 60 days for the contract awardee to complete transition activities and NOAA security screening requirements. The option to extend for an additional (6) months is included as a contingency should there be further delays associated with the protest.

- 4. Authority and supporting rationale.** The following circumstance justifies limiting the source as supported below:

Logical Follow-on under the authority of FAR 8.405-6(a)(1)(i)(C) - In the interest of economy and efficiency, the new work is a logical follow-on to an original Federal Supply Schedule (FSS) order (Task Order: 1305L220FNFFK0331). The original order was placed in accordance with the applicable FSS ordering procedures. The original order was not previously issued under sole-source or limited sources procedures.

Mobomo, LLC. is currently providing the aforementioned support services through one (1) task order issued from a GSA MAS contract. A short-term extension of these services is necessary due to delays associated with a protest.

The new contract was awarded on September 19, 2024 and the notice of unsuccessful awardee and brief explanation of the basis of award in accordance with FAR 8.405-2(d) was issued on September 23, 2024. A subsequent protest of the award decision was filed with the U.S. Government Accountability Office (U.S. GAO) on October 3, 2024. As a result, WAD issued a notification of protest and stop work order to the awardee on October 4, 2024. Services under the current task order had already been extended six months in accordance with FAR Clause 52.217-8 to allow for sufficient transition time under the new contract for NOAA security screening and for NMFS OCIO to coordinate with the new contractor for an ongoing Jira transition. The extension also provided continuation of services while the protest was being resolved. WAD ultimately determined that corrective action was appropriate and a notice of corrective action and request for dismissal was submitted to the U.S. GAO on October 10, 2024. U.S. GAO dismissed the protest on October 15, 2024. The corrective action award decision was issued on February 25, 2025 and the subsequent notice of unsuccessful awardee and brief explanation of the basis of award was issued on February 26, 2025. A U.S. GAO protest of the corrective action award decision was filed on March 10, 2025. This action will provide WAD sufficient time to ensure continuity of services for completion of transition activities and to resolve the protest of the corrective action award decision.

Mobomo, LLC, as the incumbent contractor, possesses the immediate resources, knowledge, and infrastructure to ensure complete continuity of services. No other contractor can immediately provide support services without causing a significant disruption in service. The Government anticipates at least 60 to 90 days for contract transition to a different contractor. This timeline does not include the time needed to competitively reprocure services for the extension period. The current NOAA acquisition planning timeline metrics for an action of [REDACTED] is 119 to 209 days for competitive task orders under a GSA MAS. Based on this data, the Government can expect at least a 4-month gap in service to compete this action. Furthermore, competing this action would be cost prohibitive and result in substantial duplication of procurement costs as the competitive reprocurement was already completed and the corrective action award decision was finalized on February 25, 2025.

A lapse in service would lead to significant operational, security, and user experience risks. Delayed security updates could expose the Agency to security vulnerabilities, hinder compliance with DOC and U.S. Office of Personnel Management policies, compromise Section 508 accessibility, degrade the reliability of critical online services, and lead to downtime. In addition, unresolved technical debt and outdated dependencies could increase long-term maintenance costs, while a poor user experience may erode public trust and engagement. As this service maintains the public face for NMFS, the degradation and potential failure of this service will cause severe reputational damage to NMFS.

Below is a list of the expected mission impacts should there be a lapse in service:

- NMFS risks security vulnerabilities and the flagship website will become more vulnerable to cyberattacks, malware, and other breaches.
- Third party tools, plugins, and Application Programming Interfaces may become outdated or stop functioning properly.
- Any existing or new bugs will remain unresolved potentially disrupting critical functionality.
- Potential compliance risks and NMFS may fall out of compliance with federal requirements including accessibility.
- Potential hosting issues and performance degradation. Routine Web Application Firewall and Varnish Cache maintenance will not be conducted resulting in loss of access and availability. Failure to properly maintain the website may lead to downtime and slow loading time.
- Limited ability to comply with Executive Orders, policies, and directive because Drupal users cannot edit all areas of the website. Some components can only be edited by the contractor development team because these personnel have the required Drupal credentials and expertise to perform these functions. NMFS OCIO does not currently have in-house federal Drupal developer staff.
- All service enhancements and new features will cease.

These support services are a critical part of NMFS OCIO's infrastructure representing the only Drupal developer workforce available in NMFS. NMFS OCIO does not have the federal manpower nor does it have the budget or support resources to hire and on-board federal term or full-time employees to supplement the loss of contractor personnel.

5. Determination by the ordering activity contracting officer that the order represents the best value consistent with FAR 8.404(d).

This action represents the best value and results in the lowest cost and performance risk alternative considering the current task order prices, duplicative procurement costs and procurement lead time, and NMFS OCIO mission impacts. WAD conducted an informal analysis of the task order labor rates in September 2024 for market research utilizing a comparison of the current task order labor rates against published average labor rates for similar labor categories from GSA MAS contract vehicles. In addition, the individual cost elements of the labor rates were analyzed using data from the U.S. Bureau of Labor Statistics. The analysis confirmed the pricing offered under the current task order is competitive with current market pricing. Furthermore, the contractor provides an additional [REDACTED] discount on labor rates for the task order from its GSA MAS contract labor rates.

6. Market research conducted among schedule holders (or reason market research was not conducted).

Market research was conducted for the competitive repurchase and it was determined that these support services can be provided by more than three small business vendors and through agency and non-agency acquisition vehicles. [REDACTED] However, the unique circumstances regarding this action precludes competition based on the aforementioned facts in Section 4 above.

7. Any other facts supporting the justification.

All supporting facts have been documented herein. There are no additional facts to be reported in this section.

8. Actions, if any, the agency may take to remove or overcome any barriers that led to the restricted consideration before any subsequent acquisition for supplies and services is made.

The competitive repurchase was awarded on February 25, 2025. An immediate short-term extension of the current task order is necessary to allow sufficient time to provide continuity of services during completion of transition activities and resolution of a protest. Additional extensions will only be exercised if needed.

9. Technical/Requirements Representative Certification.

I certify that this requirement constitutes the Government's minimum needs and the supporting data provided herein is accurate and complete to the best of my knowledge and belief.

Digitally signed by [REDACTED]
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Date

COR/IT Governance Branch Chief, NOAA/NMFS/OCIO

10. Office of General Counsel Review.

Review

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Date

Attorney, Contract Law Division, DOC/OGC/CLD

11. Approving Official Determination of Circumstance Applicability.

In accordance with the requirement at FAR 8.405-6(c)(2)(xi), the undersigned approving official for this justification hereby determines the circumstance cited above at #4, Authority and supporting rationale, applies to this acquisition.

Contracting Officer's Certification and Approval

I certify this justification is accurate and complete to the best of my knowledge and belief.

Approve

Digitally signed by [REDACTED]
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Date

Hannah M. Montoya
Contracting Officer, NOAA/AGO/WAD